

22STCV27975 22STCV27975

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-06-30

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Case Number: 22STCV27975 Hearing Date: June 30, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

JYLA

ELSA CORRAL, et al.,

vs.

FORD

MOTOR COMPANY, et al.

Case No.:

22STCV27975

Hearing Date: June 30, 2026

Defendants

Bimbo Bakeries USA, Inc.'s and Earthgrains Distribution, LLC's motion to dismiss Plaintiffs' second amended complaint is denied.

Defendants Bimbo Bakeries USA, Inc. ("Bimbo Bakeries") and Earthgrains Distribution, LLC ("Earthgrains Distribution") (collectively,

"Moving Defendants") move for an order dismissing Plaintiffs Jyla Elsa Corral's, by and through their Guardian Ad Litem, Rafael Corral; Jonaven Hess Corral's, by and through their Guardian Ad Litem, Rafael Corral; Jazlyn Leilani Corral's, by and through their Guardian Ad Litem, Rafael Corral; Jayven Cali Corral's, by and through their Guardian Ad Litem, Rafael Corral; and Jocelyn Gianna Corral's, by and through their Guardian Ad Litem, Rafael Corral; individually and as successors in interest to Heather Susy Garcia (collectively, "Plaintiffs") second amended complaint ("SAC") on the grounds that service of summons and of the complaint by the Plaintiffs is untimely, having first been attempted almost three years after the date the initial Complaint was filed. (Notice Motion, pg. ii; C.C.P. §§583.410, 583.420; CRC, Rules 3.1340, 3.1342.)

Request for Judicial Notice

Moving Defendants' 4/14/26 request for judicial notice of (1) Plaintiffs' August 26, 2022 Complaint; (2) Plaintiffs' December 6, 2022 Doe Amendment Krystal Enterprises, LLC as Doe 1; (3) Plaintiffs February 27, 2023 Doe Amendment naming Krystal Enterprises, LLC as Doe 2; (4) Plaintiffs' March 3, 2023 Doe Amendment naming Grech Motors Inc. as Doe 3; (5) Plaintiffs' March 3, 2023 Doe Amendment naming Edward P. Grech as Doe 4; (6) Plaintiffs' March 3, 2023 Doe Amendment naming Krystal Enterprises, Inc. as Doe 5; (7) Plaintiffs' March 3, 2023 Doe Amendment naming Krystal Infinity, LLC as Doe 6; (8) Plaintiffs' October 5, 2023, Doe Amendment naming Vapor Bus International as Doe 7; (9) Plaintiffs' October 5, 2023, Doe Amendment naming Westinghouse Air Brake Technologies as Doe 8; (10) Plaintiffs' December 12, 2023 Notice of Motion and Motion for Leave to File First Amended Complaint; (11) this Court's April 11, 2024 Minute Order granting Plaintiffs leave to amend a First Amended Complaint; (12) this Court's July 2, 2024 Order deeming the settlement between Ford Motor Company and Plaintiffs to be in good faith; (13) this Court's December 12, 2024 Order deeming the settlement between Westinghouse Air Brake Technologies Corporation and Vapor Bus International and Plaintiffs to be in good faith; (14) this Court's February 3, 2025 Order deeming the settlement between Grech Motors, Inc. and Edward P. Grech and Plaintiffs to be in good faith; (15) Plaintiffs' April 17, 2025, Notice of Motion and Motion for Leave to File Second Amended Complaint; (16) this Court's May 28, 2025 Minute Order denying Plaintiffs leave to amend a Second Amended Complaint; (17) Plaintiffs' June 2, 2025, Doe Amendment naming Manuel Gutierrez as Doe 9; (18) Plaintiffs' June 2, 2025, Doe Amendment naming Gutierrez Manuel Inc. as Doe 10; (19) Plaintiffs' June 2, 2025, Doe Amendment naming Lorenzo A. Martinez-Labrie as Doe 11; (20) Plaintiffs' June 16, 2025, Doe Amendment naming Bimbo Bakeries as Doe 12; (21) Plaintiffs'

June 16, 2025, Doe Amendment naming Earthgrains as Doe 13; (22) Plaintiffs' July 23, 2025 Ex Parte application seeking to advance the hearing date on the second motion for leave to file a second amended complaint, which contains the motion for leave to amend to file a second amended complaint and the proposed second amended complaint; (23) this Court's August 12, 2025 Minute Order granting Plaintiffs leave to amend a Second Amended Complaint; and (24) this Court's Civil Case Access Docket and Register of Actions as of April 14, 2026, is denied because this Court does not need to take judicial notice of filings on the instant docket.

Background

Plaintiffs filed their initial complaint on August 26, 2022. On December 6, 2022, Plaintiffs filed Doe Amendment naming Krystal Enterprises, LLC as Doe 1. On February 27, 2023, Plaintiffs filed a second Doe Amendment naming Krystal Enterprises, LLC as Doe 2. On March 3, 2023, Plaintiffs filed a Doe Amendment naming Grech Motors Inc. as Doe 3. On March 3, 2023, Plaintiffs filed a Doe Amendment naming Edward P. Grech as Doe 4. On March 3, 2023, Plaintiffs filed a Doe Amendment naming Krystal Enterprises, Inc. as Doe 5. On March 3, 2023, Plaintiffs filed a third Doe Amendment naming Krystal Infinity, LLC as Doe 6. On October 5, 2023, Plaintiffs filed a Doe Amendment naming Vapor Bus International as Doe 7. On October 5, 2023, Plaintiffs filed a Doe Amendment naming Westinghouse Air Brake Technologies as Doe 8.

On December 12, 2023, Plaintiffs filed a motion for leave to file a first amended complaint ("FAC"). On April 11, 2024, this Court granted leave to file the FAC.

On July 2, 2024, the Court deemed the settlement between Defendant Ford Motor Company and Plaintiffs to be in good faith. On December 12, 2024, the Court deemed the settlement between defendants Westinghouse Air Brake Technologies Corporation and Vapor Bus International and plaintiffs to be in good faith. On February 3, 2025, the Court deemed the settlement between Defendants Grech Motors, Inc. and Edward P. Grech and Plaintiffs to be in good faith.

On April 17, 2025, the Plaintiffs filed their first attempt at a second amended complaint. The motion was heard on May 28.

2025, and denied on procedural grounds.

On June 2, 2025, Plaintiffs filed a Doe Amendment naming Manuel Gutierrez as Doe 9.

On June 2, 2025, Plaintiffs filed a Doe Amendment naming Gutierrez

Manuel Inc. as Doe 10. On June 2, 2025,

Plaintiffs filed a Doe Amendment naming Lorenzo A. Martinez- Labrie as Doe 11. On June 16, 2025, Plaintiffs filed a Doe Amendment naming Bimbo Bakeries as Doe 12.

On June 16, 2025, Plaintiffs filed a Doe Amendment naming Earthgrains as Doe 13.

On July 23, 2025, Plaintiffs filed an Ex Parte application seeking to advance the hearing date on the second motion for leave to file a second amended complaint. It was advanced to August 12, 2025.

On August 12, 2025, this Court granted the Plaintiff's second attempt at motion for leave to file the second amended complaint ("SAC"). On September 16, 2025, Moving Defendants' counsel at the time, Manning & Kass, Ellrod, Ramirez, Trester LLP ("Manning Kass") filed an answer to the SAC on behalf of Moving Defendants.

On April 14, 2026, Moving Defendants filed the instant motion. Plaintiffs filed their opposition on June 16, 2026. Moving Defendants filed their reply on June 23, 2026.

As a preliminary matter, dismissal motion for delay in prosecution is subject to a special 45-day notice of hearing requirement. (C.C.P. §583.410; CRC, Rule 3.1342(a).) Moving Defendants' motion was properly filed well before the 45-day notice of hearing deadline, since the motion was filed 77 days before the scheduled hearing date.

Legal Standard

C.C.P. §583.410 provides:

(a) The court may in its discretion dismiss an action for delay in prosecution pursuant

to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.

(b) Dismissal

shall be pursuant to the procedure and in accordance with the criteria prescribed by rules adopted by the Judicial Council.

(C.C.P. §583.410.)

C.C.P.

§583.420 provides in relevant part:

(a) The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred:

(1) Service is not made within two years after the action is commenced against the defendant.

(C.C.P. §583.410.)

An action is “commenced” when the original complaint is filed against the defendants named therein. Therefore, the 3-year period for service and filing proof of service runs from that date, rather than from the date of any later amended complaint (even if the amended complaint is the only one served).

(C.C.P. §411.10; *Perati v. Atkinson* (1964) 230 Cal.App.2d 251, 253-254.)

The above rule applies even where the defendant seeking dismissal was served as one of the “Doe” defendants named in the original complaint, which was later amended to show his true name. If a “Doe” was named in the original complaint, the 3-year period for service and filing proof of service of summons runs from the date the complaint was filed. (*Lesko v. Superior Court* (1982) 127 Cal.App.3d 476, 484-485 [stating original complaint named only “Doe” defendants to stop running of statute of limitations]; *Inversiones Papaluchi S.A.S. v. Superior Court* (2018) 20 Cal.App.5th 1055, 1061 [dismissing cross-complaint where original cross-complaint named “Roes 1-25” but defendants not designated as Roes until almost three years later and not served until more than three years later; time for service ran from filing of original cross-complaint].)

Discussion

Moving Defendants' motion to dismiss
Plaintiffs' SAC is denied.

Moving Defendants' general appearance
was made three years and 25 days after the initial Complaint was filed.

Cases

are split on whether a defendant's general appearance after 3 years but during the added 60-day period for filing proof of service of summons prevents involuntary dismissal. (See Wong v. Armstrong World Industries, Inc. (1991) 232 Cal.App.3d 1032, 1035 [answer filed within 60-day period allowed for filing proof of service prevents involuntary dismissal]; compare Weatherby v. Van Diest (1991) 233 Cal.App.3d 506, 509-511 [general appearance 3 years and 46 days after summons issued did not satisfy requirements of "service" within 3-year period or filing proof of service within 60 days thereafter]; see also Biss v. Bohr (1995) 40 Cal.App.4th 1246, 1251 [agreeing with Wong and criticizing Weatherby for misreading the effect of statutory amendments].)

This

Court finds the reasoning in Wong v. Armstrong World Industries, Inc. to be most instructive. In Wong, the Court of Appeal harmonized the statutes regarding a mandatory dismissal of an action for failure to serve a defendant three years after an action was commenced. The Wong Court stated:

Reading

the provisions of the chapter together as we must (Steketee v. Lintz, Williams & Rothberg (1985) 38 Cal.3d 46, 52 [210 Cal.Rptr. 781, 694 P.2d 1153]), it is clear that the time limitation within which return of summons must be made is inapplicable when a defendant makes a general appearance within three years and sixty days of commencement of the action. When section 583.110's definition of "service" is read into section 583.220, it would appear as follows: "The time within which [return of summons] must be made pursuant to this article does not apply if the defendant . . . does [an] act that constitutes a general appearance in the action." The plain meaning of the statute is that the three-year-and-sixty-day time limit for return of summons is relieved by the defendant's general appearance during that time

period.

Any

other interpretation of these provisions would lead to an incongruous result. For example, if we were to read section 583.220 as applying strictly to service of a summons and complaint, an action would be dismissed for failure to make a timely return of summons even though a defendant generally appeared during the added 60-day time period, but no dismissal would be mandated where a defendant made a general appearance during the 3-year time period.

We have

found no case analyzing the effect of a defendant's general appearance during the added 60-day time period for return of summons upon the mandatory dismissal provisions of section 583.250. However, when we consider the history and purpose behind the return of summons requirement, we are convinced that a general appearance during the period for return of summons eliminates the provision for mandatory dismissal. A return of summons is required to inform the court that the defendant has received jurisdictional notice. (Kaiser Foundation Hospitals v. Superior Court (1975) 49 Cal.App.3d 523, 525 [122 Cal.Rptr. 432]; 3 Witkin, Cal. Procedure (3d ed. 1985) Actions, § 814, p. 801.) This purpose is fulfilled in a case such as this one where the defendant files its answer to the complaint. Under the former law, section 581a, subdivision (a) (see Stats. 1971, ch. 7, § 1, p. 9), a general appearance during the three-year time period for return of summons prevented dismissal. It is axiomatic that a general appearance during the extended three-year-and-sixty-day time period under section 583.210 would also prevent dismissal.

The

case at bench is not one wherein the general appearance occurred after the time for service and return of summons. Here, respondents answered the complaint within the three-year-and-sixty-day time period under section 583.210.

(Wong

v. Armstrong World Industries, Inc. (1991) 232 Cal.App.3d 1032, 1034-1035.)

While Wong applies to a

mandatory dismissal, and the instant case pertains to a discretionary dismissal, the reasoning provided by the Wong Court still weighs heavily against a discretionary dismissal. Moving Defendants' counsel made a general

appearance on their behalf, thereby consenting to the jurisdiction of this Court and waiving any challenge to service of process.

With regard to failure to prosecute, Plaintiffs have not been sitting on their hands in the time since Moving Defendants made a general appearance. Moving Defendants' motion acknowledges that Plaintiffs have moved for determinations of good faith settlements with other defendants in advancing their interests in this matter. Plaintiffs have also engaged in various discovery disputes with defendants, including the Moving Defendants, which demonstrates that Plaintiffs have not been failing to prosecute their claims.

Accordingly,
Moving Defendants' motion is denied.

Conclusion

Moving Defendants' motion to dismiss
Plaintiffs' SAC is denied.

Moving Party to give notice.

Dated:
June _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court